DIVISION BENCH ITEM NO.105

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CA No.28/2023 IN CP (CAA) No.05/ALD/2023
IN CA (CAA) No.9/ALD/2022
(Second Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 21st March, 2024

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**EPACK COMPONENTS PVT. LTD. WITH EPACK DURABLE PVT. LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. Saurabh Khanna, Adv. *: For the Petitioner*

Sh. Ajeet Kumar Singh, AOL. *: For the OL/ALD*

Sh. Shivendra Bahadur Singh, CGSC *: For the ROC*

Sh. Gaurav Mahajan, Sr.S.C. *: For the IT Department*

ORDER

CA No.28/2023

1. Ld. Counsel representing the petitioner has referred to supplementary affidavit filed vide Diary No.678 dated 4th March, 2024, whereby according to him the clarification/ undertaking has been given with respect to the continuance of the proceedings to be taken care of by the Transferee Company.

2. The Ld. Counsel representing the Income Tax Department on the other hand states that since in any case the assessment has to be completed by

-Sd- ***-Sd-***

31st March, 2024 or before in accordance with the mandate of the Act, the matter may be kept immediately after 31st March, 2024 to await the outcome of the assessment order and for appropriate compliance, if any, by the Petitioners.

3. Let the matter be adjourned for further hearing on 4th April, 2024.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

21st March, 2024

Avaneesh Kumar Singh
(Stenographer)